In an authoritarian state, rights derive from the state and are granted to the people. In a free state, rights derive from the people and are granted to the state. In the former, people are subjects, who are only allowed to own property, pursue an education, work, pray, and speak because their government permits them to. In the latter, people are citizens, who agree to be governed in a covenant of consent that must be periodically renewed and is constitutionally revocable. It's this clash, between the authoritarian and the liberal democratic, that I believe to be the major ideological conflict of my time—not some concocted, prejudiced notion of an East-West divide, or of a resurrected crusade against Christendom or Islam.

Authoritarian states are typically not governments of laws, but governments of leaders, who demand loyalty from their subjects and are hostile to dissent. Liberal-democratic states, by contrast, make no or few such demands, but depend almost solely on each citizen voluntarily assuming the responsibility of protecting the freedoms of everyone else around them, regardless of their race, ethnicity, creed, ability, sexuality, or gender. Any collective guarantee, predicated not on blood but on assent, will wind up favoring egalitarianism—and though democracy has often fallen far short of its ideal, I still believe it to be the one form of governance that most fully enables people of different backgrounds to live together, equal before the law.

This equality consists not only of rights but also of freedoms. In fact, many of the rights most cherished by citizens of democracies aren't even provided for in law except by implication. They exist in that open-ended empty space created through the restriction of government power. For example, Americans only have a "right" to free speech because the government is forbidden from making any law restricting that freedom, and a "right" to a free press because the government is forbidden from making any law to abridge it. They only have a "right" to worship freely because the government is forbidden from making any law respecting an establishment of religion, and a "right" to peaceably assemble and protest because the government is forbidden from making any law that says they can't.

In contemporary life, we have a single concept that encompasses all this negative or potential space that's off-limits to the government. That concept is "privacy." It is an empty zone that lies beyond the reach of the state, a void into which the law is only permitted to venture with a warrant—and not a warrant "for everybody," such as the one the US government has arrogated to itself in pursuit of mass surveillance, but a warrant for a specific person or purpose